

## 26NNCV04765 26NNCV04765

County: los-angeles

Division: Civil Law and Motion

Department: A

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Case Number: 26NNCV04765 Hearing Date: September 18, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

SEPTEMBER 18, 2026

DEMURRER

Los

Angeles Superior Court Case # 26NNCV04765

MP: Defendant

New Century Autos, Inc. dba New Century Volkswagen

RP: Plaintiff

Steven Gringer

NOTICE:

The Court is not requesting oral argument on this matter. Unless the Court directs argument in the Tentative Ruling, no argument is required. The tentative ruling will become the ruling of the court if no argument is received.

#### ALLEGATIONS:

Steven Gringer ("Plaintiff") alleges that on December 30, 2025, he leased a 2026 Volkswagen Tiguan, which was warranted by Defendant Volkswagen Group of America Inc. ("VW"). Plaintiff alleges that the vehicle was delivered with serious defects and nonconformities to the warranty. He presented the vehicle for repair, but VW was unable to conform the vehicle to applicable warranties. Plaintiff also contends that Defendant New Century Volkswagen ("New Century") failed to properly store, prepare, and repair the subject vehicle.

The Complaint, filed June 16, 2026, alleges: (1) Violation of Song-Beverly Act – Breach of Express Warranty against VW; (2) Violation of Song-Beverly Act – Breach of Implied Warranty against VW; and (3) Negligent Repair against New Century only.

#### MOTION ON CALENDAR:

On August 18, 2026, New Century filed a Demurrer to the Complaint. On September 4, 2026, Plaintiff filed an opposition. On September 11, 2026, New Century filed a reply.

#### LEGAL STANDARD:

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (*Id.*)

A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a

court may take judicial notice. (Blank, supra, 39 Cal. 3d at 318.)

Pursuant to

C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal. 4th 1074, 1082.)

MEET AND  
CONFER:

C.C.P. §§

430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (See Phan Decl., ¶¶3-6.)

ANALYSIS:

New Century demurs to the Third Cause  
of Action in the Complaint.

In the Third Cause of Action, Plaintiff alleges that he delivered the subject vehicle to New Century for repair during the express warranty period for a warranted defect in the subject vehicle. (Compl., ¶41.) He contends New Century owed him a duty to use ordinary care and skill in storage, preparation and repair of the subject vehicle in accordance with industry standards, and breached that duty. (Id., ¶¶42-43.) He alleges New Century's negligent breach of its duties proximately caused Plaintiff's damages. (Id., ¶44.)

The elements of negligence are "duty, breach of duty, proximate cause, and damages."  
(Carlsen v. Koivumaki (2014)  
227 Cal.App.4th 879, 892.)

The allegations merely allege the elements of Negligence but

fail to allege what conduct New Century engaged in that constituted a breach of its duties or how Plaintiff was injured.

For example, Plaintiff alleges that New Century owed him a duty to store, prepare, and repair the subject vehicle and that New Century's failure to do so constituted breach, thereby injuring Plaintiff. However, it is unclear what the nature of this breach and resulting damages involved.

Did New Century negligently store the vehicle such that it got damaged and Plaintiff is claiming property damages? How were New Century's attempted repairs negligent? Plaintiff should provide additional facts to support this claim.

The demurrer is sustained with leave to amend on this basis.

New Century also argues that the Negligence claim is barred by the economic loss rule. However, at this time, the Court cannot ascertain whether the economic loss rule applies because it is not clear on the face of the Complaint whether this cause of action is based on the warranty or for separate conduct that caused damage to the vehicle (such as improper storage that caused the subject vehicle to get scratched, etc.).

The demurrer to the Third Cause of Action is sustained with leave to amend.

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#### RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

#### ORDER

Defendant New Century Autos, Inc. dba New Century Volkswagen's Demurrer came on regularly for hearing on September 18, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE

DEMURRER TO THE THIRD CAUSE OF ACTION IS SUSTAINED WITH 30 DAYS' LEAVE TO  
AMEND.

DEFENDANT NEW CENTURY  
TO GIVE NOTICE.

IT IS SO ORDERED.